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Center for Science in the Public Interest: California Bill Would Ban Synthetic Dyes and Titanium Dioxide From School Foods

March 14, 2024 | Targeted News Service (USA)
Section: Public Policy Groups | 630 Words
OpenURL Link

WASHINGTON, March 14 (TNSres) -- The Center for Science in the Public Interest issued the following statement on March 13, 2024, by Thomas Galligan, principal scientist for additives and supplements:

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School foods in California may soon be safer thanks to a bill introduced in the California state legislature yesterday (https://leginfo.legislature.ca.gov/faces/billNavClient.xhtml?bill_id=202320240AB2316) that would ban six synthetic food dyes and titanium dioxide from foods served in public schools in the state. This bill, introduced by Assemblymember Jesse Gabriel, offers much needed protections to California's kids and acts decisively where federal and state agencies have failed to act. Gabriel also championed the landmark 2023 California Food Safety Act that bans cancer-causing Red 3 and three other harmful food additives from all foods sold in the state starting in 2027.

The Center for Science in the Public Interest has long recommended that synthetic food dyes be eliminated from all school foods, including meals, competitive foods, and milks. CSPI has also been a leading voice urging the Food and Drug Administration and the state of California to protect consumers from synthetic food dyes and titanium dioxide and has called on the U.S. Department of Agriculture to improve school food standards.

In 2008, CSPI petitioned FDA to ban the synthetic food dyes targeted by this bill after studies conducted in the early 2000s showed dyes can have adverse behavioral effects on some children, including ADHD-like symptoms that disrupt classroom learning. Then, nearly three years ago, the California Office of Environmental Health Hazard Assessment (OEHHA) completed a comprehensive, rigorous review of the evidence--including 27 human clinical trials--and concluded that synthetic food dyes can cause or exacerbate neurobehavioral problems in some children. OEHHA went on to say, "at a minimum, in the short-term, the neurobehavioral effects of synthetic food dyes in children should be acknowledged and steps taken to reduce exposure to these dyes in children."

"For the child who is affected and their family, their teachers, and the school system, a short-term increase in inattentiveness or restlessness and anxiety that can be repeated routinely when food dye is consumed could reduce social and academic success," according to the OEHHA report (https://oehha.ca.gov/risk-assessment/report/health-effects-assessment-potential-neurobehavioral-effects-synthetic-food).

Given the serious public health impacts and OEHHA's conclusions, CSPI and allied organizations and scientists petitioned the California Department of Public Health in December 2022, asking that the department require warning labels on synthetically dyed foods sold in the state to alert consumers to the effects these dyes can have on children's neurobehavior. The department has yet to rule on this petition, meaning California's children are still at undue risk of harm from dyes.

Meanwhile, the FDA has failed to acknowledge the OEHHA report findings or recommendations, take any action to protect consumers, or indicate that it will even review the safety of these color additives.

FDA has also yet to rule on a pending petition to ban titanium dioxide. The petition, submitted by a coalition of five public health groups including CSPI in March 2023, cites evidence that titanium dioxide nanoparticles can potentially accumulate in the body and damage our DNA.

Federal school nutrition standards, which are set by the USDA, continue to allow synthetic dyes and titanium

dioxide in school foods.

Each of the seven substances to be banned by this bill--Blue 1, Blue 2, Green 3, Red 40, titanium dioxide, Yellow 5, and Yellow 6--are color additives, meaning they are unnecessary in food, serving only to make foods visually appealing and offering no nutritional benefits.

Where FDA, USDA, and CDPH have failed to protect children, the California legislature can succeed.

CSPI urges California lawmakers to pass this bill swiftly to ensure that children in California are no longer unnecessarily exposed to harmful food colors while at school. We applaud Assemblymember Gabriel for his continued leadership in the effort to safeguard our foods and children.

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Original text here: https://www.cspinet.org/statement/california-bill-would-ban-synthetic-dyes-and-titanium-dioxide-school-foods

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- **Citation (apa Style)**
  Center for Science in the Public Interest: California Bill Would Ban Synthetic Dyes and Titanium Dioxide From School Foods. (2024, March 14). *Targeted News Service (USA)*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/197CC096158A7338.